



File No.: EXP202211441

RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On August 11, 2022, the Spanish Agency for Data Protection became aware through a complaint of certain facts that could violate data protection legislation. The Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD) to investigate AIR EUROPA LINEAS AÉREAS, S.A., with NIF A07129430 (hereinafter the complained party) in relation to the following facts:

The complaint indicates that the complained party has enabled a space on its website for users to include health information related to vaccination against COVID-19, understanding that the complaining party believes that the complained party does not have any legal authorization for such action, nor does it constitute a Health Authority. They also state that they do not adequately inform about the processing and management of such data.

They provide images of the section of the complained party's website where the upload of health documentation is requested.

SECOND: On October 27, 2022, the Director of the Spanish Agency for Data Protection agreed to initiate investigation proceedings in relation to AIR EUROPA LINEAS AÉREAS, S.A., to verify these aspects and, if applicable, the proper observance of the regulations.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation proceedings to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

On January 13 and June 16, 2023, a request for information was made to AIR EUROPA, and in their responses, they indicate the following:

Regulatory Framework

- On January 30, 2020, the Director-General of the World Health Organization (WHO) declared a public health emergency of international concern due to the global outbreak of the coronavirus of severe acute respiratory syndrome type 2 (SARS-CoV-2), which causes the disease known as coronavirus 2019 (COVID-19). On March 11, 2020, the WHO published an assessment classifying COVID-19 as a pandemic.

According to the International Health Regulations, an event of this nature constitutes a risk to the public health of States due to the international spread of a disease. For these circumstances, the Regulation provides for health measures, temporary or permanent, that States may apply to individuals, luggage, cargo, containers, means of transport, goods, and/or packages, in response to a public health emergency of international importance.

Among the measures to be applied to individuals are medical examinations, prophylactic measures, or other recognized health measures that prevent or control the spread of the disease, including isolation, quarantine, or subjecting the traveler to public health observation.

The evolution of the pandemic and the emergence of new variants of special concern have required the adoption of different measures to ensure greater control over international traveler traffic.

- Since the beginning of the implementation of health controls, through the Resolution of June 29, 2020, of the General Directorate of Public Health, Quality, and Innovation, regarding health controls to be carried out at points of entry to Spain, subsequently replaced by the Resolution of July 24, 2020, of the General Directorate of Public Health, Quality, and Innovation, regarding health controls to be

carried out at points of entry to Spain, the epidemiological situation regarding the COVID-19 pandemic has been changing, not only in Spain but globally.

In the same way, the mechanisms for health surveillance and control that countries have been implementing at points of entry have also evolved in order to control the importation of cases from passengers coming from at-risk countries.

The updated list of at-risk countries or areas is reviewed periodically, and its update is published on the website of the Ministry of Health and on the SpTH website: <https://www.spth.gob.es>. The update of the reviews of the list of countries or areas becomes effective seven days after its publication, with the aim of allowing transport companies, travel agencies, and tour operators to adjust the informational measures for passengers.

In Spain, health controls for international passengers at points of entry have been regulated through various Resolutions of the General Directorate of Public Health, published on the Government of Spain's website and referenced in the COVID-19 Border Regulatory Diligence, with more than one hundred regulatory references.

- In relation to travel agencies, tour operators, and companies...

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Air or maritime transport companies and any other agents that sell tickets either individually or as part of a combined trip, for example, Royal Decree-Law 23/2020, of June 23, establishes that they must inform passengers, at the beginning of the ticket sales process for travel to Spain, of the obligation for travelers to present the Health Control Form upon arrival, which will include the declaration of having a negative Active Infection Diagnostic Test for SARS-CoV-2 conducted within seventy-two hours prior to arrival for those coming from high-risk countries/areas.

Likewise, this royal decree-law establishes that the airport manager and airlines will collaborate with the Ministry of Health for the implementation of health control measures, a fundamental aspect in ensuring the proper implementation of the measure. In this regard, in application of the duty of collaboration provided for in section 4 of the Sixth Additional Provision of Royal Decree-Law 23/2020, airlines will check prior to boarding that passengers destined for Spain have the QR code generated through the website www.spth.gob.es, or the Spain Travel Health-SpTH application.

- Recommendation (EU) 2020/912 of the Council, of June 30, on the temporary restriction of non-essential travel to the European Union and the possible lifting of such restriction, established a list of third countries whose residents were exempt from travel restrictions to the European Union, as well as a set of specific categories of persons also exempt from those restrictions, regardless of their place of origin. This Recommendation has been modified on several occasions to adapt the list of third countries to epidemiological circumstances or to modify the criteria for compiling that list.

Regulation (EU) 2021/953 regarding a framework for the issuance, verification, and acceptance of interoperable COVID-19 vaccination, diagnostic test, and recovery certificates (EU digital COVID certificate) in order to facilitate free movement during the COVID-19 pandemic, modified by Regulation (EU) 2022/1034 of the European Parliament and of the Council of June 29, 2022, establishes the characteristics of health certificates for vaccination, diagnostic testing, and recovery within the framework of international travel, with the aim of facilitating free movement and gradually lifting restrictions on this free movement in the context of the COVID-19 pandemic.

However, this Regulation leaves it to the Member States to limit the fundamental right to free movement for public health reasons, in order to limit the spread of SARS-CoV-2, always based on specific and limited public interest reasons such as safeguarding public health.

Since the publication of the Regulation, Spain has applied the characteristics of the EU digital COVID certificates as health requirements for international passengers, and these have largely been the basis for the health controls applied at entry points.

Similarly, the characteristics of the EU digital COVID certificate are

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They have extended to accept as valid the vaccination certificates, diagnostic tests, or recovery documents issued by third countries without equivalence agreements.

- Thus, since the onset of COVID-19, air operators and companies have been subjected to the observance of specific health requirements, also related to the traveler's circumstances, and changing across the different States in which they operate.

These requirements are reflected in the verification that every passenger boarding a flight of a company complies with the health regulations of the destination country so that they are not returned to their place of origin. The necessary documentation to be presented to the border control authorities in each country, or to satisfactorily prove to each of them the circumstances that authorized the traveler to enter the country and not be returned to their place of origin, has continuously varied at the discretion of the numerous resolutions and subsequent updates issued by the competent authorities in each of those countries.

In most cases, the rules issued by national authorities have made airlines responsible for verifying the necessary documentation of each passenger before allowing them to board the flight in question, so that transporting a passenger to their destination without all the necessary documentation or requirements could entail:

- The obligation to transport the passenger back to their place of origin, at the airline's expense, and
 - The imposition of fines or administrative sanctions for failing to diligently comply with their documentation verification obligations.
- AIR EUROPA informs that it was recently sanctioned, on January 4, 2023, by Germany for not correctly verifying compliance with its entry requirements into the country. It provides Document 1 that evidences this.
- On May 5, 2023, the Director-General of the World Health Organization declared: "Yesterday, the Emergency Committee met for the fifteenth time and recommended that I declare the end of the public health emergency of international concern. I have accepted that advice. Therefore, I declare with great hope the end of COVID-19 as an international health emergency."

On July 5, 2023, Order SND/726/2023, of July 4, from the Ministry of Health, declaring the end of the COVID-19 health crisis, was published in the BOE.

"SAFE TRAVEL" Tool

AIR EUROPA states that in a considerable effort to implement the more than 300 different versions of health requirements that passengers had to prove in the destination countries since the onset of COVID-19, it contracted the services of AMADEUS IT GROUP S.A., specifically the "SAFE TRAVEL" tool to automate the verification of passengers' health documentation.

Submits Documents 2, 3, and 4 as evidence of the first health requirement following the reopening of international airspace; requirement 174, corresponding to the peak moment of health restrictions, and requirement 287, as one of the last requirements. Each of these describes the COVID-19 documentary requirements that passengers had to present in the different States.

The tool was contracted on October 19, 2021, after having initiated a pilot project in March 2021 and following the implementation of modifications and improvements.

It is noted that AIR EUROPA has enabled a space on its website for travelers to upload COVID documentation during online check-in; vaccination certificate, PCR/Antigen results; as required by each destination.

AIR EUROPA emphasizes that the use of the tool is optional; the passenger is not obligated to provide their health documentation and always has the alternative to present it when requested at the time of

boarding the aircraft.

Furthermore, it indicates that at any point during online check-in, the passenger can proceed to the next step of the check-in process without needing to upload health documentation. Document 5 is provided, Verification of COVID-19 documentation in online check-in, which shows that during online check-in, the passenger can skip the step Verify your health status regarding COVID-19 in advance, continue with the check-in process, and choose to present health documentation to verify their COVID status at the airport.

AIR EUROPA states that it does not transfer health data and that it does not share this information with destination countries.

Information provided to interested parties

The informational clause provided to passengers prior to uploading health documentation, which must be accepted to continue with the upload process; otherwise, the online check-in process will continue without verifying compliance with health requirements, which will mean that passengers must present health documentation at the time of boarding the aircraft, is as follows:

"We inform you that Air Europa, as the data controller, in accordance with the provisions of the GDPR and the LOPDGDD, will process personal data (name and surname, passport, date of birth, nationality, country of residence, vaccination certificate/COVID passport, PCR/antigen test) for the purpose of improving your experience (facilitating your transit at the airport) by previously verifying (online check-in) compliance with the requirements requested in the destination country.

The use of this automated service is voluntary and optional. Every passenger has the option to present their documents at the airport if they do not wish to use this method. The legal basis for the processing is the consent given with the upload of the documents, which will allow Air Europa to verify automatically."

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that the relevant entry requirements for each route/trip are fulfilled before the passenger is accepted on board.

We inform you that your data will be retained until the attached documentation is validated; subsequently, it will be automatically, securely, and irretrievably deleted, with only a record remaining that the required validation has occurred in your reservation data, under the designation of SKYCLEARED.

Your data will not be transferred, except as required by law. Air Europa will store the data in the computer system of its data processor Amadeus IT Group, S.A., which has implemented effective technical and organizational security measures to prevent and mitigate risks.

You may exercise your rights of access, rectification, deletion, opposition, portability, and limitation of your data, as well as the right to withdraw the consent granted at any time, by contacting Air Europa through the email of the Data Protection Officer: delegadopd@aireuropa.com. Likewise, you have the right to file a complaint with the relevant Control Authority.

Furthermore, in the Privacy Policy published on the website, under the heading Sensitive Data in the section Personal Data Processed, see the Privacy Policy Diligence, reference is made to COVID-19, and vaccination certificates or diagnostic tests (Antigens, PCR, etc.) are categorized as sensitive data, stating:

It is important to highlight that, for certain destinations and while the regulations regarding the control of epidemics or pandemics (for example: COVID-19) require us to do so, we may request that you show your data such as vaccination certificates or diagnostic tests (Antigens, PCR, etc.) required by the health authorities of the destination country.

If you participate in the SKYCLEARED program, you can validate your vaccination certificates/COVID passport (sensitive data), if required by the authorities of your destination, as part of the online check-in (App or website), in order to enhance your experience at the airport by making it faster and safer (without presenting your documentation either at check-in or boarding, as you will be registered

in our systems as an eligible passenger to travel).

Validation of health documentation

The verification of health documentation allows AIR EUROPA to ensure that the passenger meets the requirements of the destination country.

For the validation of the health documentation uploaded by the passenger, AIR EUROPA has contracted AMADEUS IT GROUP, S.A. (hereinafter, Amadeus) as the data processor, which provides, among other things, the “SAFE TRAVEL” tool, which allows for the automatic management of the validation of the documentation. In turn, Amadeus has MICROSOFT OPERATIONS IRELAND LIMITED (hereinafter, Microsoft) as its sub-processor.

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requires the service known as MICROSOFT AZURE (cloud hosted in the EEA, data extraction, automatic verification).

The validation process begins with the automatic verification that the files uploaded by passengers, the documentation uploaded in PDF or image format, do not contain malware. Next, the necessary information (first and last name, type of test, date of the test, test result) is extracted from the image with the support of the tool “Azure Computer Vision,” a technology for optical character recognition (OCR). This technology belongs to the subcontractor Microsoft.

With the processing of the extracted data, verification is carried out to determine whether the passenger meets the requirements to travel. If the passenger meets the requirements, an indicator of “authorized to travel” is added to the reservation, or in other words, SKYCLEARED, and this designation is included in the tool “ALTEA DCS.” This tool, also contracted to Amadeus, functions to manage check-in (acceptance of the passenger and their luggage and assignment of a seat on the aircraft) and boarding (process of verifying the passenger's identity and managing access to the aircraft in the most efficient manner possible).

AIR EUROPA has access to the data stored in “ALTEA DCS,” and if the boarding pass does not include the designation SKYCLEARED, at the time of boarding, the ground assistance staff requests the passenger to show the health documentation, in paper or digital format, to verify at that moment that they meet the requirements of the destination country.

Data retention period

The health documentation uploaded in PDF or image format during online check-in through the tool “SAFE TRAVEL,” embedded in the AIR EUROPA website, is deleted after 48 hours.

Previously, the tool performs data extraction (first and last name, type of test, date of the test, test result) to automatically validate compliance with health requirements. This process is carried out with “Azure Computer Vision,” and the extracted data is deleted after 48 hours.

Passengers who meet the requirements have the designation SKYCLEARED (“authorized to travel”) entered on their boarding pass. This designation is stored until the flight departure date and subsequently for seven days in case there are incidents (overbooking, flight cancellation, delay, denial of boarding, change of destination, etc.) to manage them appropriately.

Data Processing Agreement

AIR EUROPA provides the Master Services Agreement or “MSA” between AIR EUROPA and Amadeus, signed on June 1, 2018, Document number 1.

As an addendum to the Master Services Agreement, AIR EUROPA provides the document “Services Agreement to the Master Services Agreement for Traveler ID for SAFE TRAVEL,” Document number 2, also signed by AIR EUROPA and Amadeus on December 3, 2021, related to the tool “SAFE TRAVEL,” which allows for the management of the notification, collection, and verification of the health requirements that passengers must present to the airline and the airline to the destination country.

In section 15 of the Master Services Agreement, provisions regarding data processing are included, and the following is its translation:

“15. PRIVACY AND DATA SECURITY

(...)

"1. DATA PROTECTION AUTHORIZATION

1.3 Hereby, the Recipient of the service (...) the maintenance and Processing of Personal Data services to the Subprocessors authorized by the Airline (...) (Subcontractors) of the Master Services Agreement."

On the other hand, Annex F includes the list of subprocessors of Amadeus as of June 1, 2018.

Similarly, the updated list as of June 2023 is provided, Document number 3.

However, AIR EUROPA notes that for the tool "SAFE TRAVEL," it only requires the subprocessor MICROSOFT IRELAND OPERATIONS LIMITED and specifically its service known as MICROSOFT AZURE.

Data Protection Impact Assessment (DPIA)

AIR EUROPA states that the purpose of the tool "SAFE TRAVEL" is to verify that passengers meet the specific health requirements of the route/destination country. These requirements are reflected in the verification that every passenger boarding an AIR EUROPA flight complies with the health regulations of the destination country. To verify this, it is essential to request the passenger's vaccination certificate or COVID passport and/or the PCR or antigen test performed.

AIR EUROPA states that the tool "SAFE TRAVEL," which allows for the management of the notification, collection, and automatic verification of health requirements, has been designed following the principle of privacy by default. It also provides the data protection impact assessment (DPIA) related to the processing carried out by the tool, Document 7 of entry REGAGE23e00007181021, which includes:

Assessment of the necessity and proportionality of the processing:

o Necessity:

Due to the continuous changes (more than 300 in the last 3 years) in the health requirements demanded by the various countries in which AIR EUROPA operates, the Company deemed it necessary to automate the verification system.

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Proportionality:

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Scope: the processing is optional, so only those passengers who prefer to provide this information to expedite their airport experience will be affected.

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Extent: the personal data processed falls under the category of sensitive data, specifically the vaccination certificate/COVID passport and/or the PCR or antigen test.

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Intensity: the processing allows for conclusions to be drawn regarding COVID, specifically whether individuals have been vaccinated or do not have the disease at the time of the flight.

☐

The retention period for health data is minimal; it is maintained only for the time necessary to verify documentation and address potential incidents (overbooking, flight cancellation, delay, denied boarding, change of destination, etc.).

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Measures: security measures have been implemented, which will be described later, to ensure that the processing is secure and the rights of the data subjects are not affected.

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Risk Management:

Threats are identified, and the inherent risk level of each is calculated; measures are defined to mitigate the risk of each threat, and the residual risk level is calculated.

The final result is an acceptable risk.

Implemented Security Measures

AIR EUROPA indicates that, although it is responsible for the processing, it does not access health documentation nor has the ability to consult it; it only stores in the "ALTEA DCS" tool, to which it does have access, the designation SKYCLEARED or, in other words, "authorized to travel."

The following are the implemented security measures; the technical measures are almost entirely introduced by the data processor (Amadeus) and its sub-processor (Microsoft). On the other hand, the organizational measures are implemented by the responsible party (AIR EUROPA), the processor, and the sub-processor:

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Technical Measures:

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(...)

Additionally, the tool will rely on some services managed by Microsoft Azure, applying various security controls by this sub-processor to protect personal data, among which are:

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(...)

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Organizational Measures:

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Appointment of Data Protection Officer or Compliance Officer:

(...)

o

IT and cybersecurity department.

o

Personal Data Protection Policy and Development Protocols.

o

Confidentiality Policy and employee clauses.

o

Legal/contractual measures:

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(...)

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Processing of special categories of personal data

Article 9 of the GDPR, which regulates the processing of special categories of personal data, establishes the following:

"1. The processing of personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data aimed at uniquely identifying a natural person, data concerning health, or data concerning a natural person's sex life or sexual orientation is prohibited.

2. Paragraph 1 shall not apply when one of the following circumstances applies:

a) the data subject has given explicit consent to the processing of such personal data for one or more specified purposes, except when the Law...

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the Union or the Member States establishes that the prohibition mentioned in paragraph 1 cannot be lifted by the data subject;

b) the processing is necessary for compliance with obligations and the exercise of specific rights of the data controller or the data subject in the field of labor law and social security and protection, to the extent that it is authorized by Union law or the law of the Member States or a collective agreement under the law of the Member States that establishes adequate safeguards for the respect of fundamental rights and the interests of the data subject;

c) the processing is necessary to protect vital interests of the data subject or another natural person, in the event that the data subject is not physically or legally capable of giving consent;

d) the processing is carried out, within the scope of its legitimate activities and with appropriate safeguards, by a foundation, an association, or any other non-profit body whose purpose is political, philosophical, religious, or trade union, provided that the processing relates exclusively to current or former members of such bodies or to persons who maintain regular contact with them in relation to their purposes and provided that the personal data are not communicated outside of them without the consent of the data subjects;

e) the processing relates to personal data that the data subject has made manifestly public;

f) the processing is necessary for the formulation, exercise, or defense of claims or when courts act in the exercise of their judicial functions;

g) the processing is necessary for reasons of substantial public interest, based on Union law or the law of the Member States, which must be proportional to the pursued objective, respect the right to data protection in essence, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject;

h) the processing is necessary for purposes of preventive or occupational medicine, the assessment of the working capacity of the employee, medical diagnosis, the provision of health or social care assistance or treatment, or the management of health and social care systems and services, based on Union law or the law of the Member States or under a contract with a health professional and without prejudice to the conditions and safeguards provided for in paragraph 3;

i) the processing is necessary for reasons of public interest in the field of public health, such as the protection against serious cross-border threats to health, or to ensure high standards of quality and safety of health care and medicinal products or medical devices, based on Union law or the law of the Member States that establishes adequate and specific measures to protect the rights and freedoms of the data subject, in particular professional secrecy;

j) the processing is necessary for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, based on Union law or the law of the Member States, which must be proportional to the pursued objective, respect the right to data protection in essence, and establish adequate and specific measures to protect the interests and fundamental rights of the data subject.

3. The personal data referred to in paragraph 1 may be processed for the purposes mentioned in paragraph 2, letter h), when their processing is carried out by a professional subject to the obligation of professional secrecy, or under their responsibility, in accordance with Union law or the law of the Member States or with the standards established by the competent national authorities, or by any other person also subject to the obligation of secrecy in accordance with Union law or the law of the Member States or the standards established by the competent national authorities.

4. Member States may maintain or introduce additional conditions, including limitations, regarding the processing of genetic data, biometric data, or data concerning health."

III

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller, at the time of obtaining this data, shall provide all the information indicated below:

- a) the identity and contact details of the controller and, where applicable, of their representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) when the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;
- f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second subparagraph, reference to the appropriate safeguards and the means to obtain a copy of these or the place where they have been made available.

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2. In addition to the information mentioned in section 1, the data controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be retained or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data concerning the data subject, and its rectification or erasure, or the restriction of its processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which it was collected, it shall provide the data subject, prior to that further processing, information about that other purpose and any other relevant information in accordance with section 2.

The provisions of sections 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information.

IV

Data protection by design and by default

Article 25 of the GDPR states the following:

"1. Taking into account the state of the art, the cost of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity posed by the processing to the rights and freedoms of natural persons, the data controller shall implement, both at the time of determining the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to effectively apply the

principles of data protection, such as data minimization, and to integrate the necessary safeguards into the processing to meet the requirements of this Regulation and protect the rights of data subjects.

2. The data controller shall implement appropriate technical and organizational measures to ensure that, by default, only personal data that are necessary for each specific purpose of the processing are processed. This obligation applies to the amount of personal data collected, the extent of their processing, the period of their storage, and their accessibility. Such measures shall ensure that, by default, personal data are not accessible, without the intervention of the individual, to an indeterminate number of natural persons.

3. An approved certification mechanism under Article 42 may be used as an element to demonstrate compliance with the obligations set out in sections 1 and 2 of this Article."

V

Data protection impact assessment

The data protection impact assessment is regulated in Article 35 of the GDPR as follows:

"1. When a type of processing, in particular if it uses new technologies, is likely to result in a high risk to the rights and freedoms of natural persons by virtue of its nature, scope, context, or purposes, the data controller shall carry out, prior to the processing, an assessment of the impact of the processing operations on the protection of personal data. A single assessment may address a set of similar processing operations that present similar high risks.

2. The data controller shall seek the advice of the data protection officer, if appointed, when carrying out the data protection impact assessment.

3. The data protection impact assessment referred to in section 1 shall be required in particular in the case of:

a) systematic and comprehensive evaluation of personal aspects relating to natural persons based on automated processing, including profiling, and on which decisions are based that produce legal effects concerning the natural persons or similarly significantly affect them;

b) large-scale processing of special categories of data referred to in Article 9(1), or of personal data relating to criminal convictions and offenses referred to in Article 10, or

c) systematic large-scale monitoring of a publicly accessible area.

4. The supervisory authority shall establish and publish a list of the types of processing operations that require a data protection impact assessment in accordance with section 1. The supervisory authority shall communicate those lists to the Committee referred to in Article 68."

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5. The supervisory authority may also establish and publish a list of types of processing that do not require data protection impact assessments. The supervisory authority will communicate these lists to the Committee.

6. Before adopting the lists referred to in paragraphs 4 and 5, the competent supervisory authority shall apply the consistency mechanism provided for in Article 63 if those lists include processing activities related to the offering of goods or services to data subjects or the monitoring of their behavior in several Member States, or processing activities that may substantially affect the free movement of personal data within the Union.

7. The assessment shall include at least:

a) a systematic description of the intended processing operations and the purposes of the processing, including, where appropriate, the legitimate interest pursued by the data controller;

b) an assessment of the necessity and proportionality of the processing operations in relation to their purpose;

c) an assessment of the risks to the rights and freedoms of the data subjects referred to in paragraph 1; and

d) the measures envisaged to address the risks, including safeguards, security measures, and mechanisms to ensure the protection of personal data, and to demonstrate compliance with this

Regulation, taking into account the rights and legitimate interests of the data subjects and other affected persons.

8. Compliance with the approved codes of conduct referred to in Article 40 by the respective controllers or processors shall be duly taken into account when assessing the impact of the processing operations carried out by those controllers or processors, particularly for the purposes of the data protection impact assessment.

9. Where appropriate, the controller shall seek the views of the data subjects or their representatives regarding the intended processing, without prejudice to the protection of public or commercial interests or the security of the processing operations.

10. When the processing based on Article 6(1)(c) or (e) has its legal basis in Union law or in the law of the Member State applicable to the data controller, such law regulates the specific processing operation or set of operations in question, and a data protection impact assessment has already been carried out as part of a general impact assessment in the context of the adoption of that legal basis, paragraphs 1 to 7 shall not apply unless Member States consider it necessary to carry out such an assessment prior to the processing activities.

11. If necessary, the controller shall examine whether the processing is in compliance with the data protection impact assessment, at least when there is a change in the risk posed by the processing operations.

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Principles relating to processing

Letter c) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

VII

Conclusion

In the complaint filed against AIR EUROPA, this Agency is informed that the entity has enabled a space on its website for users to include health information related to COVID-19 vaccination, without having any legal authorization or being constituted as a health authority, as well as not adequately informing about the processing and management of such data.

After the actions taken, it has been verified that AIR EUROPA, to implement the more than 300 different versions of health requirements that passengers had to provide in the destination countries since the onset of COVID-19, contracted the services of AMADEUS IT GROUP S.A., specifically the "SAFE TRAVEL" tool to automate the verification of passengers' health documentation.

It provides the data protection impact assessment related to the processing carried out by "SAFE TRAVEL." The DPIA includes the assessment of necessity and proportionality of the processing, the identification of threats, the inherent risk of each of them, the measures defined to mitigate it, and the level of residual risk.

The final result is an acceptable risk, and the security measures implemented by the controller, processor, and sub-processor are adequate.

The use of the "SAFE TRAVEL" tool is optional; the passenger is not obligated to provide their health documentation, and they always have the alternative to present it when requested at the time of boarding the plane.

In the information clause provided to passengers prior to uploading health documentation, it states:

"The use of this automated service is voluntary and optional. Every passenger has the option to present their documents at the airport if they do not wish to use this method."

This information clause must be accepted to continue with the process of uploading health documentation; otherwise, the online check-in process will continue without verifying compliance with health requirements, which will imply that passengers must present their health documentation at the time of boarding.

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on the plane.

It is acknowledged that at any time during the online check-in, the passenger can proceed to the next step of the check-in process without the need to upload health documentation.

For the validation of the health documentation uploaded by the passenger, AIR EUROPA has contracted AMADEUS IT GROUP S.A as the data processor, which provides the “SAFE TRAVEL” tool. In turn, Amadeus has MICROSOFT OPERATIONS IRELAND LIMITED as a sub-processor, from which it requires the service known as MICROSOFT AZURE (cloud hosted in the EEA, data extraction, automatic verification).

If the passenger meets the travel requirements, an indicator of "authorized to travel" is added to the reservation, or in other words, SKYCLEARED. If the boarding pass does not include the designation SKYCLEARED, at the time of boarding, the passenger is requested to show the health documentation, in paper or digital format, to verify at that moment that they meet the requirements of the destination country.

The health documentation uploaded in PDF or image format during online check-in through the “SAFE TRAVEL” tool is deleted after 48 hours. The designation SKYCLEARED entered on the boarding passes of passengers who meet the health requirements is stored until the flight departure date and, subsequently, for seven days in case there are incidents that need to be managed appropriately. In the informative clause provided to passengers prior to the upload of health documentation, it is stated:

“We inform you that your data will be retained until the attached documentation is validated; subsequently, it will be automatically, securely, and irretrievably deleted, with only the record of the required validation occurring in your reservation data, under the designation of SKYCLEARED.”

In the Privacy Policy published on the website, under the heading Sensitive Data in the section Personal Data Processed, reference is made to COVID-19, and vaccination certificates or diagnostic tests (Antigens, PCR, etc.) are categorized as sensitive data, stating:

“It is important to highlight that, for certain destinations and while the regulations referring to the control of epidemics or pandemics (for example: COVID-19) require us to do so, we may request that you show your data such as vaccination certificates or diagnostic tests (Antigens, PCR, etc.) required by the health authorities of the destination country.

If you participate in the SKYCLEARED program, you can validate your vaccination certificates/COVID passport (sensitive data), if required by the authorities of your destination, as part of the online check-in (App or website), with the aim of improving your experience at the airport by making it faster and safer (without presenting your documentation either at check-in or boarding, as you are registered in our systems as an eligible passenger to travel).”

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AIR EUROPA stated that it does not transfer health data and that it does not share such data with destination countries in any case.

From the actions taken, it is inferred that the system for verifying documentation related to COVID vaccination was available on the AIR EUROPA website, and it was always voluntary to do so. If the passenger chose to provide the documentation, they always did so voluntarily, being informed of the

processing that would be carried out and having appropriate security measures for that processing. Article 27 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, enshrines the principle of typicity in the field of the sanctioning power of the Administration, as it prescribes that only violations of the legal order that are provided as such by a law constitute administrative infractions. According to the doctrine of the Constitutional Court, the guiding principles of criminal law apply, with certain nuances, to sanctioning administrative law, given that both are manifestations of the punitive order of the State, as reflected in the Constitution itself in its article 25, which imposes the necessity of normative predetermination of infringing conduct and the corresponding sanctions, allowing for sufficient certainty (*lex certa*) in predicting such conduct and knowing what to expect regarding the associated liability and potential sanction, with a precise correlation between the illicit act and the action attributed, through a correct and adequate subsumption of the proven facts in the applied sanctioning type.

According to the principles of sanctioning administrative law, a series of elements must concur to understand that an administrative infraction has occurred. First, for administrative liability to exist, it is necessary that the person being charged has performed an action or omission. If this conduct, whether active or omissive, is regulated in administrative norms as an infraction, then it will be granted such nature. Likewise, the principle of responsibility requires that the alleged responsible party has acted culpably or willfully, with the first case being when the actions are conscious and voluntary, and the culpable case being those that are involuntary but result in a breach of the norm. Another essential element of administrative infractions is the effect of time, as only those behaviors that are classified as infractions at the time they are committed can be punished.

In the present case, there is no evidence that any action different from that explained by the responding party has occurred.

Therefore, based on the indications in the previous paragraphs, no evidence has been found that substantiates the existence of an infraction within the jurisdiction of the Spanish Agency for Data Protection.

Thus, in accordance with what has been stated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

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FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to AIR EUROPA LINEAS AÉREAS, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es

28001 – Madrid
sedeagpd.gob.es